ARRANGEMENT OF SECTIONS

Section

1. Title.
2. Application.
3. Interpretation.
4. Allocation of land for urban agriculture.
5. Environmental protection and management.
6. Offences and penalties.

FIRST SCHEDULE: Fees.
SECOND SCHEDULE: Penalties.

IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*] approved the following by-laws:—

Title

1. These by-laws may be cited as the Plumtree Town (Urban Agriculture) By-laws, 2025.

Application

2. These by-laws shall apply to the area under the jurisdiction of the Plumtree Town.

Interpretation

3. In these regulations—

"council" means Plumtree Town;

"deserving residents" include but are not limited to people living with HIV and AIDS, orphaned and vulnerable children, the elderly, the indigent and the destitute people within and ordinarily resident within the Plumtree Town;

"irrigation" refers to the watering of crops on land that is more than 200 square metres in extent;

"livestock" means domestic animals such as cattle, sheep, goats, pigs or horses raised for home use or for profit;

"poultry" means domesticated fowls such as chickens, turkeys, ducks, guinea fowl, pheasant, ostriches, pigeons or geese kept primarily for meat and eggs;

"resident" means a person who is ordinarily resident in the area of the Council's jurisdiction;

"urban area" means any area designated by council as such;

"urban agriculture" means farming within or just outside the boundaries of the urban area;

"urban farmer" means any person who practices farming within or immediately beyond the boundaries of an urban area.

Allocation of land for urban agriculture

4. (1) Any person who is a resident of the council area may carry out urban agricultural activities within the urban area subject to appropriate authorisation from the council.

(2) Any person who wants land for agriculture should apply to council.

(3) Only council shall issue permits to allow land for agriculture within the urban area.

(4) The permit will be valid for a period not exceeding twelve months and allocated land shall not be permanent and council at any time can repossess the land for its intended purpose as per council land use plan.

(5) Council shall determine the types of crops to be grown at any permitted piece of land.

(6) The council shall consider gender, disability and the vulnerability of any groups in the allocation and administration of urban agricultural activities.

(7) Any person who violates subsections (3) and (4) shall be liable to a fine specified in the Second Schedule.

Environmental protection and management

5. (1) No person shall cause environmental damage, pollution or degradation in the process of carrying out urban farming within the urban area.

(2) No person shall erect a structure on the permitted piece of land, without permission from Council.

(3) All crop residues to be removed after harvesting.

(4) No person shall be allowed to burn any agricultural residue without permission from Council, Environmental Management Agency and Forestry Commission.

(5) Any person who is engaged in cultivation of crops within the urban area shall take measures to ensure that:

(a) the use of chemicals and fertilisers does not cause pollution of underground water sources or surface water sources including dams, rivers, wells, aquifers or any other water source or damage to soils, grass, trees, plants or any other vegetative cover;

(b) the cultivation on or close to ecologically sensitive areas including the banks of any naturally defined stream or river, wetland, aquifer or any natural watercourse must be at least 30m away.

(6) Any person who contravenes subsections (1), (2), and (3) shall be liable to a fine specified in the Second Schedule.

(7) In addition to any penalty that may be imposed in subsection (5), any person who causes pollution or environmental degradation shall meet the costs of remedying such pollution or environmental degradation and any resultant adverse health effects, as well as the cost of preventing, controlling or minimising further pollution, environmental damage or adverse health effects.

Offences and penalties

6. Any person who contravenes any provision of these by-laws shall be liable to a fine specified in the Second Schedule.

First Schedule: Fees

Section	Description	Fees (US$)
4	Application fee for permit to carry out urban agriculture	0,00
	Permit fee	0,00
5	Application for permit to erect structures	0,00
	Permit fee	0,00

SECOND SCHEDULE (Penalties)

Section	Description	Penalty (US$)
4	Using land for agriculture without a permit	0,00
4	Growing crops that are not permitted by Council	0,00
5	Causing environmental damage, pollution or degradation	0,00
5	Erecting a structure on the piece of land without a permit from Council	0,00
5	Failure to remove crop residue after harvesting	0,00
5	Burning any agricultural residue without a permit	0,00

NB: The charges and penalties are payable in local currency at the prevailing interbank rate and exclude VAT.